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Provision of June 22, 2023

Register of provisions

n. 262 of June 22, 2023

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, Members, and

Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European

Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the report from the Special Unit for Privacy Protection and Technological Fraud of the Guardia di Finanza sent to this Authority regarding the inspection carried out on July 28, 2022, at the individual business "Spaziani Fabrizio" engaged in the retail trade of monopoly goods (tobacconist), located in Foligno, Via Campagnola 4, which confirmed the presence of a video surveillance system not compliant with the regulations on personal data protection equipped with 6 functioning cameras, 4 internal and 2 external to the premises;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Deputy Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The ascertainment and initiation of the procedure.

On April 11, 2022, a report was received regarding the non-compliant installation of a video surveillance system located at the individual business "Spaziani Fabrizio" engaged in the retail trade of monopoly goods (tobacconist), located in Foligno, Via Campagnola 4, as the cameras, not indicated by appropriate informational signs, were deemed capable of capturing a nearby road adjacent to the commercial establishment.

In relation to the inspection carried out by the Special Unit for Privacy Protection and Technological Fraud of the Guardia di Finanza, on July 28, 2022, the presence of a video surveillance system equipped with 6 functioning cameras, 4 internal and 2 external to the premises, was confirmed.

The report drafted during the inspection indicates the lack of appropriate informational signs regarding the presence of the aforementioned cameras, except for a single sign placed internally in the premises, which was also missing the indication of the owner and the purposes of the processing; it was also confirmed that the cameras captured extensive portions of public road, well beyond the spaces immediately adjacent to the commercial premises.

The owner of the business stated during the ascertainment that the external cameras capture "part of the area in front of the commercial establishment, the area where the beverage vending machine is located, the area where the cigarette vending machine is located, as well as, incidentally, part of Via Campagnola that intersects with Via Piave."

He also admitted that "there are no informational signs regarding the presence of the cameras" and that in the only sign present in the area designated for the sale of stationery products, "neither the owner of the processing nor the purposes of the same are indicated."

The Office, therefore, based on the findings made, as per the aforementioned report, proceeded to notify the act of initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letters a) and c), 6, and 13 of the Regulation (prot. n. 53455 of October 4, 2022).

With a note dated October 19, 2022, the Business submitted its defense writings regarding the procedure against it, stating that it had made "all modifications and corrections" to the video

surveillance system installed at its commercial establishment, specifying, in particular, that it had affixed appropriate informational signs regarding the presence of the cameras and had reduced the viewing angle of the external cameras, providing photographic documentation in support of the statements made.

## 2. The legal framework of the processing carried out

The use of video surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a video-surveilled area.”

For this purpose, the data controller must affix appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided...

with other means (second level).

The guidelines also state that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

Finally, according to the provisions of the general measure on video surveillance of April 8, 2010, in the case of recording external areas of buildings and properties, the processing must occur “in such a way as to limit the field of view to the area actually to be protected, avoiding the recording of surrounding places and irrelevant details (streets, buildings, commercial establishments, institutions, etc.)” (see, in particular, point 6.2.2.1 of the measure).

## 3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it has emerged that the video surveillance system installed at the Company was active and operational and that it also recorded the public road, beyond what was strictly necessary concerning the relevant areas, without appropriate informational signs regarding the processing of personal data of individuals entering the field of view of the cameras being posted.

Therefore, in this case, it is evidenced in the documents that the party has carried out the processing of personal data, through a video surveillance system, in violation of what is established by Article 13 of the Regulation, according to which the data controller is required to provide the data subject with all the information regarding the essential characteristics of the processing.

In this case, it is also evidenced that the cameras were capable of recording a significant part of the public road in front of the commercial establishment (as also confirmed by the party during the inspection); therefore, the processing is deemed to have been carried out, with reference to the exceeding areas, in violation of the general principles set out in Article 5, paragraph 1, letter a) of the Regulation due to the failure to comply with the aforementioned prescriptions of the general measure on video surveillance.

## 4. Order of injunction.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an order of injunction (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, in the absence of the information referred to in Article 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility associated with the failure to fulfill the obligation to provide information to the data subjects;
- the absence of specific previous violations by the company related to breaches of the data protection regulations;
- the circumstance that the Company cooperated with the Authority during the procedure, demonstrating compliance with legal obligations by limiting the field of view of the external cameras and providing informational signs in accordance with the regulations.

In light of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €1,000.00 (one thousand) for the violation of Article 5, paragraph 1, letter a) and Article 13 of the Regulation.

In this context, also considering the type of violation ascertained, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by the Company through the use of the video surveillance system installed at the same company, in the terms stated in the reasoning, for the violation of Article 5, paragraph 1, letter a) and Article 13 of the Regulation;

ORDERS

the individual enterprise “Spaziani Fabrizio”, VAT No. 03594950549, based in Foligno, Via Campagnola 4, to pay the sum of €1,000.00 (one thousand) as an administrative pecuniary sanction for the...

violations described above;

ORDERS

therefore the same Company to pay the sum of euro 1,000.00 (one thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No.

689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the option for the

offender to settle the dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the sanction imposed within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 provided for the submission of the appeal as indicated below.

DECIDES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 22, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE DEPUTY SECRETARY GENERAL

Filippi